

25STCV06110 25STCV06110

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C06%2F25%2F2026

Source SHA-256: f1ca51b065061bb70bfbf53c636d48836a61e292a3f808163c697280e220811a

Case Number: 25STCV06110 Hearing Date: June 25, 2026 Dept: 413

TENTATIVE RULING

Melissa

Ragan et al. v. General Motors, LLC,

No. 25STCV06110

Motion for

Compliance Pursuant to CCP Section 851.26; Request for Sanctions

Moving

Party: Defendant General

Motors, LLC

Opposing

Party: No Opposition filed.

Summary of

Ruling: Motion is granted.

Section

871.26 of the Code of Civil Procedure provides as follows:

“(a)

This section only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20.

“(b)

Within 60 days after the filing of the answer or other responsive pleading, all

parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).

“(c)

Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents:

”(1)

The plaintiff.

“ . .

. .

“(j)

Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

“(1)

A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

“(2)

A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

“(3)

For a plaintiff's repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer.

“

. . . .

“(5)

Notwithstanding paragraph

(3) of subdivision (o) of Section 6068 of the Business and Professions Code, the court may, in its discretion, require an attorney who is sanctioned pursuant to this subdivision to report the sanction, in writing, to the State Bar of California within 30 days of the imposition of the sanction.” (Emphasis added.)

Defendant

contends and offers evidence by way of declaration and exhibits that it sought the deposition of Plaintiffs pursuant to the provisions of section 871.26(c) of the Code of Civil Procedure within the time period required, and Plaintiffs failed to comply with the requirement despite efforts by Defendant to meet and confer. Defendant seeks an order compelling Plaintiffs’ depositions and an award of sanctions pursuant to section 871.26(j)(2) of the Code of Civil Procedure, a provision which makes such sanctions mandatory.

Plaintiffs

have filed no opposition to Defendant’s motion. The Court construes the lack of opposition as a concession on the merits. (See D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion “it is assumed that [nonmoving party] concedes” that ground].)

The Court finds that Defendant has provided adequate and proper factual and legal support for its motion. Therefore, the Court grants the Motion and ORDERS as follows:

1.

Plaintiffs

are to appear for deposition in this case no later than 30 days from the date of this Order.

2.

The

Court awards sanctions jointly and severally against Plaintiffs’ attorneys, Tionna Carvalho, Larry Chae, Tyson Smith, and Strategic Legal Practices, A P.C., in the amount of \$1,500. The sanctions

are to be paid to counsel for Defendant within 15 days of the date of this order.